

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-006
Amendments to Title 17 of the Chickasaw Nation Code
(Controlled Dangerous Substances Offense)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously passed rules and regulations on criminal offenses and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 4, Article D, Section 17-402.2, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through):

SECTION 17-402.2

**POSSESSION OF A CONTROLLED DANGEROUS
SUBSTANCE.**

A. It shall be unlawful, except as authorized and controlled by federal law, to knowingly or intentionally be in Possession of a Controlled Dangerous Substance unless such substance was obtained directly, or pursuant to a valid prescription or order, from a practitioner, while acting in the course of his or her professional practice.

B. ~~Conviction for Possession of a Controlled and Dangerous Substance with the Intent to Distribute shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.~~
Any person who violates this section with respect to:

1. Marijuana, is guilty of a misdemeanor and shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment;

2. All other Controlled Dangerous Substances shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 10 ayes, 2 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 15 2023

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Explanation:

This resolution amends the Chickasaw Nation Code to change the punishment for simple possession of marijuana to a misdemeanor offense from a felony.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature